

ASSIGNMENT OF PURCHASE AND SALE AGREEMENT

THIS ASSIGNMENT OF CONTRACT ("Assignment") is made as of **[[DATE]]** by and between:

- **ASSIGNOR: Rich Fabiani, an individual, d/b/a FRESH GROUND** ("Assignor"); and
- **ASSIGNEE: [[BUILDER LEGAL NAME]], a [[STATE/entity type]]** ("Assignee").

Recitals

A. Assignor is the "Buyer" under that certain **Real Estate Purchase and Sale Agreement dated [[PSA DATE]]** (the "Original Contract") with **[[SELLER NAME]]** ("Seller") for the property at **[[PROPERTY ADDRESS]], [[CITY]], [[STATE]] [[ZIP]], Parcel [[PARCEL ID]]** (the "Property"), purchase price **\$[[PURCHASE PRICE]]**. **B.** A true and complete copy of the Original Contract is attached as **Exhibit A**. **C.** Assignor wishes to assign, and Assignee wishes to accept, all of Assignor's rights and obligations under the Original Contract, for the consideration below.

1. Assignment

Assignor hereby **assigns, transfers, and conveys** to Assignee all of Assignor's right, title, interest, and obligations in and to the Original Contract and the Property. Assignee **accepts the assignment and assumes** all of Assignor's obligations under the Original Contract arising from and after the Effective Date of this Assignment.

2. Assignment Fee

In consideration, Assignee shall pay Assignor a **non-refundable Assignment Fee of \$[[ASSIGNMENT FEE]]** ("Assignment Fee"), payable as follows:

- **\$[[EARNEST / non-refundable deposit, e.g., 5,000]]** to Assignor within **[[2]] business days** of execution (non-refundable except for Assignor's default), and
- the **balance of \$[[]]** at Closing of the Original Contract, disbursed to Assignor by the Settlement Agent **on the settlement statement**.

3. Assignee's Acknowledgment

Assignee acknowledges that Assignee has (a) received and **reviewed the Original Contract** and all exhibits, (b) conducted or waived its own due diligence on the Property, including zoning, buildability, and value, and (c) is **not relying on any representation of Assignor** regarding the Property or the Seller. The Property is taken **AS-IS** per the Original Contract.

4. Closing & Deed

Assignee shall perform all Buyer obligations under the Original Contract and close on or before the closing date stated therein ([[CLOSING DATE]]). Title shall convey **directly from Seller to Assignee** at Closing. Assignee shall deposit any required earnest money and funds directly with the Settlement Agent: [[TITLE COMPANY]].

5. Assignor Representations

Assignor represents: (a) the Original Contract is in full force and has not been amended except as attached; (b) to Assignor's knowledge, neither Assignor nor Seller is in default; (c) Assignor has full right and authority to make this Assignment.

6. Default & Remedies

- If **Assignee** fails to close (other than due to Seller/Assignor default), Assignor retains the non-refundable deposit (§2) and this Assignment terminates; Assignor's other rights are reserved.
- If **Assignor** materially defaults, Assignee's deposit under §2 is refunded as its sole remedy against Assignor.
- Neither Party is liable for the **Seller's** performance under the Original Contract.

7. Indemnification

Assignee shall indemnify and hold Assignor harmless from any obligation, cost, or liability under the Original Contract arising from and after the Effective Date of this Assignment. Assignor shall indemnify Assignee for matters arising before it.

8. General

This Assignment is the entire agreement between the Parties as to its subject, binds their successors and permitted assigns, and may be amended only in a signed writing. Governed by the laws of the [[STATE]]. Electronic signatures and counterparts are valid and binding.

SIGNATURES

ASSIGNOR — Rich Fabiani d/b/a FRESH GROUND

By: _____ Date: _____

Name: [[Rich Fabiani]] · Phone/Email: [[]]

ASSIGNEE — [[BUILDER NAME]]

By: _____ Date: _____

Name/Title: [[]] · Phone/Email: [[]]

Exhibit A — copy of the fully executed Original Contract (attach before sending).